

26STCV05046 26STCV05046

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV05046 Hearing Date: July 9, 2026 Dept: 729

Superior Court of

California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

TANIA BALLOU,

vs.

ROBERT KORDA,

et al.

Case No.:

26STCV05046

Hearing Date: July 9, 2026

Defendant R.P.K. Development

Corporation's motion to compel arbitration of Plaintiff Tania Ballou's claims
in this action is denied.

Defendants Robert Korda's, Korda

Construction Co.'s, Nohely Williams', Debra Atilano's, Rialto Heritage LP's,
and Rialto Heritage LLC's joinder to Defendant R.P.K. Development Corporation's

motion is denied.

Defendant R.P.K. Development Corporation ("RPK") ("Moving Defendant") moves for an order compelling arbitration of all claims asserted by Plaintiff Tania Ballou ("Ballou") ("Plaintiff"). (Amended Notice of Motion, pg. 2; C.C.P. §§1280 et seq.)

Defendants Robert Korda ("Korda"), Korda Construction Co. ("KCC"), Nohely Williams ("Williams"), Debra Atilano ("Atilano"), Rialto Heritage LP ("Rialto LP"), and Rialto Heritage LLC ("Rialto LLC") (collectively, "Joining Defendants") join Moving Defendant's motion.
(Notice of Joinder, pg. 2.)

CRC Violation

CRC Rule 3.1354(b) provides, in part:

All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement. Each written objection must be numbered consecutively and must:

- (1) Identify the name of the document in which the specific material objected to is located;
- (2) State the exhibit, title, page, and line number of the material objected to;
- (3) Quote or set forth the objectionable statement or material; and
- (4) State the grounds for each objection to that statement or material.

(CRC, Rule 3.1354(b), emphasis added.)

Plaintiff's

6/30/26 evidentiary objections are in violation of CRC, Rule 3.1354(b) because they are not in the format illustrated in CRC, Rule 3.1354(b); specifically, they are not consecutively numbered for each item objected to and do not quote or set forth the objectionable statement or material.

Evidentiary Objections

Plaintiff's 6/30/26 evidentiary objections to the Declaration of Joseph Campo ("Campo") are overruled.

Request for Judicial Notice

Moving Defendant's 6/30/26 request for judicial notice of Complaint in Danny Randell v. R.P.K. Development Corporation, LASC Case No. 26STCV08637, is granted, however the Court does not take judicial notice of the truth of the matter asserted therein.

Background

On February 17, 2026, Plaintiff filed her initial complaint against Moving Defendant and Joining Defendants (collectively, "Defendants"), asserting three causes of action: (1) race discrimination; (2) retaliation in the basis of race; and (3) retaliation in violation of Labor Code §1102.5. (See Complaint.)

On March 25, 2026, Plaintiff filed the operative first amended complaint ("FAC") against Defendants, asserting five causes of action: (1) race discrimination; (2) retaliation on the basis of race; (3) retaliation in violation of Labor Code §1102.5; (4) sexual harassment in violation of FEHA; and (5) negligent supervision.

Moving Defendant filed the instant motion on April 30, 2026. Joining Defendants filed their joinder on May 5, 2026. Plaintiff filed her opposition on June 22, 2026. On June 30, 2026, Moving Defendant filed its reply.

As a preliminary matter, Moving Defendant does not provide a declaration stating that its counsel contacted Plaintiff to request that Plaintiff submit her claims to arbitration. However, in certain circumstances, the opposing party's refusal to arbitrate may be demonstrated by its filing of a lawsuit rather than commencing arbitration proceedings, as required by the

parties' agreement. (Hyundai Amco America, Inc. v. S3H, Inc. (2014) 232 Cal.App.4th 572, 577 [stating statute does not require that petitioning party have made demand for arbitration, only that other party has refused to arbitrate].)

Therefore, the Court will consider the instant motion.

Motion to Compel Arbitration

A. Arbitration Agreement

1.

The Arbitration Agreement is enforceable.

As a preliminary matter, Plaintiff's FAC is not subject to the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act ("EFAA").

On

March 3, 2022, President Biden signed into law the EFAA, which amends the Federal Arbitration Act ("FAA") and provides individuals asserting sexual assault or sexual harassment claims under federal, state, or tribal law the option to bring those claims in Court even if they agreed to arbitrate such disputes before the claims arose. Under the Act, a plaintiff "alleging conduct constituting a sexual harassment or a sexual assault dispute" may elect to render invalid and unenforceable an arbitration provision applicable to their case. (9 U.S.C. §402(a).) The Act specifically states "at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C. §402(a), emphasis added.) "This Act and the amendments made by this Act, shall apply with respect to any dispute or claim that arises or accrues on or after the date of enactment of this Act [Mar. 3, 2022]." (Id.)

Government Code §12940(j)(4)(C) states, "[f]or purposes of this subdivision, 'harassment' because of sex includes sexual harassment, gender

harassment, and harassment based on pregnancy, childbirth, or related medical conditions. Sexually harassing conduct need not be motivated by sexual desire.” (Gov. Code §12940(j)(4)(C), emphasis added.)

Here,

Plaintiff fails to allege a viable sexual harassment claim against Defendants on the basis that she was “tokenized” by Defendants to carry out Defendants’ discriminatory mandate to deny rental applications for Black applicants who were otherwise qualified to rent, thereby creating a hostile work environment. (FAC ¶¶92-93.) Plaintiff merely alleges a race discrimination cause of action, which is not subject to the EFAA.

The

Federal Arbitration Act, 9 U.S.C. §1, et seq. (“FAA”), establishes a strong federal policy in favor of arbitration of disputes where a written arbitration agreement exists. Section 2 of the FAA provides, in pertinent part that “[a] written provision . . . to settle by arbitration a controversy thereafter arising out of such contract . . . shall be valid, irrevocable, and enforceable.” (9 U.S.C. §2.)

The purpose of the FAA is to “reverse the longstanding judicial hostility to arbitration agreements.” (Gilmer

v. Interstate/Johnson Lane Corp. (1991) 500 U.S. 20, 24.) The FAA places arbitration agreements “on an equal footing with other contracts and [requires courts] to enforce them according to their terms.” (AT&T

Mobility, LLC v. Concepcion (2011) 563 U.S. 333, 339; see also Rent-A-Center

West, Inc. v. Jackson (2010) 561 U.S. 63, 67 [“The FAA reflects the

fundamental principle that arbitration is a matter of contract.”].) The FAA will preempt not only a state law

that “discriminat[es] on its face against arbitration,” but also a state law

that “covertly accomplishes the same objective by disfavoring contracts that

(oh so coincidentally) have the defining features of arbitration agreements.” (Kindred Nursing Centers Limited Partnership v. Clark (2017) 137 S.Ct. 1421, 1426.)

The

FAA restricts a court’s inquiry related to compelling arbitration to two

threshold questions: (1) whether there was an agreement to arbitrate between

the parties; and (2) whether the agreement covers the dispute. (Howsam v. Dean Witter Reynolds, Inc. (2002) 537 U.S. 79, 84.) Here, both criteria

are not satisfied. First, Moving Defendant failed to provide an executed copy of Mutually Binding Arbitration Agreement (“Arbitration Agreement”) with Moving Defendant. Exhibit A to the Declaration

of Dale Marshall only provides a blank copy of the Arbitration Agreement; Plaintiff's signature, electronic or otherwise, is not provided. (Decl. of Marshall ¶3, Exh. A.)

A

proponent of an e-signature may authenticate the signature by introducing any "evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is," which includes circumstantial evidence. (Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1061; Evid. Code §1400; People v. Calhoun (2019) 38 Cal.App.5th 275, 313.) This includes "a showing of the efficacy of any security procedure applied to determine the person to which the . . . electronic signature was attributable." (Espejo, 246 Cal.App.4th at pg. 1061, citing Civ. Code §1633.9(a).)

Here, Moving Defendant also fails to provide the means by which Plaintiff electronically signed the Arbitration Agreement, and the efficacy of the security procedure applied to determine that Plaintiff's signature on the agreement (which was not provided) was attributable to her.

Based

on the foregoing, Moving Defendant failed to prove the existence of a valid Arbitration Agreement with Plaintiff that is enforceable by Moving Defendant.

C.

Conclusion

Moving Defendant's motion to compel arbitration is denied.

Joining

Defendants' joinder to Moving Defendant's motion is denied.

Moving Party to give notice.

Dated: July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court